

IN THE COUNTY COURT OF

COUNTY, NEBRASKA

STATE OF NEBRASKA, Case No. CR 24-0001234
Plaintiff,

vs.

Jordan Avery Reyes, **MOTION TO SEAL AN**
(your full name) Defendant. **ADULT CRIMINAL RECORD**

I am the defendant in the above-listed case.

I request this court enter an Order sealing the criminal record of this case.

I am stating the following facts in support of this Motion:

1. I was charged with
Possession of a controlled substance, Neb. Rev. Stat. section 28-416(3)
on
(Crime(s) Charged)

(Date of charge(s))

2. All charges against me in this matter (select one):
☐ Were dismissed;
☐ Resulted in an acquittal;
☒ Resulted in a conviction that was later pardoned; or
☐ Resulted in a conviction that was later set aside because I was a
victim of sex trafficking.
3. The information related to the charge(s) listed above still appears in the
public record.

I request that the court enter an Order sealing my above conviction.

Signature: _____ Date: _____

Printed Name: Jordan Avery Reyes

Street Address/P.O. Box: 412 North 12th Street

City/State/ZIP Code: Lincoln, NE 68508

Telephone Number: 402-555-0142

*Email address: jordan.reyes@example.org

*[Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

COMPLETING THE MOTION TO SEAL AN ADULT CRIMINAL RECORD

You will need to know: your case number, the county where the charge was filed, whether it was filed in county court or district court, the date of the charge, the offense you were charged with, and the outcome of the charge (dismissed or acquitted.)

You can get a copy of your criminal history through the [Nebraska State Patrol](#) (There is a small charge to get your record.), do a [one-time court case search](#) of Nebraska Court records. (There is a small charge to get your record, but it may not be a complete record.), or by going to the courthouse and using the public access terminal to get information on your record. There will be a charge for copies provided to you by the court.

NOTE: Only check the box for “Resulted in a conviction that was later set aside” if the conviction was set aside because you were a victim of sex trafficking.

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Choose the court and the county using the drop-down lists.

Enter the original case number.

Enter your name exactly as it was listed on the original case.

List the date of these charge(s).

Check the box that correctly completes the statement.

List the charge(s) in this case.

IN THE _____ COURT OF _____ COUNTY, NEBRASKA
Choose the court Choose the court

STATE OF NEBRASKA Case No. _____
Plaintiff,

vs. _____
(your full name) Defendant.

**MOTION TO SEAL AN
ADULT CRIMINAL RECORD**

I am the defendant in the above-listed case.

I request this court enter an Order sealing the criminal record of this case.

I am stating the following facts in support of this Motion:

1. I was charged with _____ on _____
(Crime(s) Charged) (Date of charge(s))

2. All charges against me in this matter (select one):
☐ Were dismissed;
☐ Resulted in an acquittal;
☐ Resulted in a conviction that was later pardoned; or
☐ Resulted in a conviction that was later set aside because I was a victim of sex trafficking.

3. The information related to the charge(s) listed above still appears in the public record.

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**Read this
statement carefully.**

If you **CANNOT**
receive emails, check
the box, and use the
lines to explain why
you can't.

I request that the court enter an Order sealing my above conviction.

Signature: _____ Date: _____

Printed Name: _____

Street Address/P.O. Box: _____

City/State/ZIP Code: _____

Telephone Number: _____

*Email address: _____

*Nebraska Supreme Court Rule § 2-208 requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

Sign the form, and
enter your printed
name, the date
signed, your address,
telephone number,
and your email
address (if you can
receive emails).

NE-SEAL-PARDONED-PARDON-DOCUMENT-INSTRUCTIONS
THE PARDON DOCUMENT, AND HOW THIS MOTION IS FILED

Assigned component identity: ne-seal-pardoned-pardon-document-instructions-3

Prepared for: Jordan Avery Reyes

Motion to Seal a Pardoned Conviction (Neb. Rev. Stat. Sec. 29-3523(5))

Prepared for Jordan Avery Reyes. Packet set ne-seal-pardoned-set, version 1.0.0.

This packet set serves 1 route(s):

- obligation:track-pathway:NE:ne-seal-pardoned:pardon-then-seal

What relief this is

Where the Nebraska Board of Pardons has pardoned a conviction, the sentencing court shall grant a motion to seal the criminal history record information and any cases related to those charges or that conviction. Relief is mandatory. The finding is the fact of the pardon rather than a dismissal reason.

Controlling authority (5 citation(s)): Neb. Rev. Stat. Sec. 29-3523(5); Neb. Rev. Stat. Sec. 29-3523(7); Neb. Rev. Stat. Sec. 29-3523(8); Neb. Const. art. IV, Sec. 13; Neb. Rev. Stat. Sec. 83-1,126 to 83-1,134.

What is in this packet

- ne-seal-pardoned-primary-filing-1 - CC 6:12 Motion to Seal an Adult Criminal Record (primary_filing, required).

- ne-seal-pardoned-instructions-2 - CC 6:12a Completing the Motion to Seal an Adult Criminal Record (instructions, required).

- ne-seal-pardoned-pardon-document-instructions-3 - The pardon document, and how this motion is filed (pardon_document_instructions, required).

The CC 6:12a instructions are carried in this packet exactly as the Nebraska Judicial Branch publishes them. Nothing is written on them and nothing is removed from them.

What is not generated, and the condition the record states

- ne-seal-pardoned-fee-waiver-4 (fee_waiver): Where the participant cannot pay any fee the clerk requires. This packet does not meet that condition, so the component is not generated.

The record also states, in its own words, why that branch has no fitting official form: The fee-waiver branch has no fitting official form. DC 6:7.1's case-type box offers only Civil, Name change and Emancipation, and its official title is scoped to civil, appeals and emancipation matters, while a set-aside petition or sealing motion is filed in the existing criminal case. There is no county-court in forma pauperis application form at all: CC 8:1 is the order only. Neb. Rev. Stat. Sec. 25-2301.01 nonetheless permits proceeding in forma pauperis in a civil or criminal case in any county or state court, so the mechanism exists and the form does not fit it. A custom affidavit and application under Sec. Sec. 25-2301 to 25-2310 is the resolution rather than mis-scoping DC 6:7.1.

The route this packet states

- Ground marked at CC 6:12 paragraph 2: Resulted in a conviction that was later pardoned, under Neb. Rev. Stat. section 29-3523(5).

- The committed NE memo names this ground for this track in terms: "Paragraph 2, checkbox 3: resulted in a conviction that was later pardoned." The route is pardon-then-seal and the packet states which ground it proceeds under rather than asking the participant.

- The other three grounds in that paragraph are left unmarked because the form says to select one and they belong to other routes.

What you must supply before filing

Check every prefilled fact against your own court record and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Document | Blank on the document | What you must supply

CC-6-12 | (Date of charge(s)) | the date of the charge, written the way your complaint, citation or court record writes it

You also sign the motion yourself and date it on the day you sign. This packet leaves the signature line and the date beside it blank, because a signature nobody made and a date written before signing are both false on their face.

What you must obtain or confirm before filing (12 item(s) held by the committed track registry)

- obtain_document (required): Obtain The pardon document. Use your copy of the pardon, or ask the Board of Pardons for one. Bring it to the hearing. LegalEase never sees or checks it. Obtained from: Nebraska Board of Pardons.

- confirm_answer (required, required before filing): Check your answer to "What does your document say it is - a pardon, a warrant of discharge, a set-aside, or a restoration of firearm rights? Only a pardon works here." against The pardon document, and correct the packet if they disagree.

- obtain_document (required): Obtain Nebraska State Patrol criminal history report. Request a limited criminal history search through nebraska.gov. Obtained from: Nebraska State Patrol.

- confirm_answer (required, required before filing): Check your answer to "Is the conviction still showing publicly?" against Nebraska State Patrol criminal history report, and correct the packet if they disagree.

- complete_field (required, required before filing): Signature on the motion - CC 6:12, signature block.

- complete_field (required, required before filing): Bringing the pardon document to the hearing - Not in the packet.

- sign (required, required before filing): The participant signs the motion.

- notarize (required, required before filing): none required on the face of the form.

- pay_fee (required, required before filing): Not established; the statewide schedule carries no line item for a motion within an existing criminal case.

- apply_fee_waiver (conditional, required before filing): Available in principle under Neb. Rev. Stat. Sec. 25-2301.01. The official DC 6:7.1 form does not fit a criminal case, which is recorded as a release blocker. Condition: Applies only when the participant cannot pay the filing fee.

- serve_party (required): None by the participant.

- file (required): File the motion in the existing case with the clerk of court.

The pardon document

The participant brings the pardon document to the hearing. LegalEase names it and never inspects or authenticates it. The instrument matters: the Board sometimes restores firearm rights without issuing a pardon, and that is not a pardon for this subsection.

Where this is filed

- Venue: The court in which the case was filed, in county court or district court.

- Destination (clerk): Clerk of the court holding the case

- Filed in the existing case. The court, not the participant, notifies the county or city attorney, so no certificate of service applies to this motion.

What it costs, and the fee waiver

- Fees: Not established; the statewide schedule carries no line item for a motion within an existing criminal case.

- Fee waiver: Available in principle under Neb. Rev. Stat. Sec. 25-2301.01. The official DC 6:7.1 form does not fit a criminal case, which is recorded as a release blocker.

- No fee figure is stated to you here, because the committed record states that none is established. Ask the clerk of the court holding your case what, if anything, is collected on a motion filed inside an existing criminal case.

Notice and service

- Notice: The court notifies the county or city attorney. The participant does not.

- Service: None by the participant.

Signing

- Signature: The participant signs the motion.

- Notarization: none required on the face of the form.

Fields deliberately left blank

- Sign and date the signature block yourself, after reading the completed motion.

- Leave every court, clerk and judicial line blank. This motion is filed inside the existing case and the court acts on it.

- The two chooser boxes beside the caption line are screen-only controls in the court's own PDF and print nothing. The court level and the county are printed on the caption line itself.

Stop self-help and get legal help (all 5 stop condition(s) the record holds)

- Stop 1 of 5: No Nebraska pardon, which routes to the pardon node.
- Stop 2 of 5: An instrument that is a warrant of discharge or a firearm-rights restoration rather than a pardon.
- Stop 3 of 5: A pardon from another state or a federal pardon.
- Stop 4 of 5: Any prosecutor objection.
- Stop 5 of 5: A mayoral pardon of a city ordinance violation, whose effect under this subsection is untested.

Hard eligibility boundaries the record states (3 exclusion(s))

- Any case with no Nebraska Board of Pardons pardon.
- Federal and out-of-state convictions, which Nebraska cannot pardon.
- A warrant of discharge, a set-aside or a firearm-rights restoration, none of which is a pardon for this purpose.

Waiting periods:

- Pardon granted: none

Limitations the legal-design record records (3)

- participant_question: What the instrument actually is must be asked. The Board sometimes restores firearm rights without granting a pardon, and that will not support this motion.
- scope_restriction: The Board will not consider pardons for traffic violations, driving under the influence, or driving under suspension, so participants with those convictions cannot reach this route at all.
- packet_instruction: The court notifies the prosecutor. The participant serves nobody.

What the committed record requires these instructions to carry

CC 6:12a, Completing the Motion to Seal an Adult Criminal Record, Rev. 06/2024.

What the record does not settle (4 open question(s))

- The filing fee for a petition or motion filed within an existing Nebraska criminal case is not established. The statewide Filing Fees and Court Costs schedule effective 1 July 2026 carries no line item for post-judgment petitions or motions within a criminal case. No fee figure may be displayed to a participant until a clerk-level answer is obtained from at least one county court and one district court. (impact: release_blocker; affects: filing_process)

- The fee-waiver branch has no fitting official form. DC 6:7.1's case-type box offers only Civil, Name change and Emancipation, and its official title is scoped to civil, appeals and emancipation matters, while a set-aside petition or sealing motion is filed in the existing criminal case. There is no county-court in forma pauperis application form at all: CC 8:1 is the order only. Neb. Rev. Stat. Sec. 25-2301.01 nonetheless permits proceeding in forma pauperis in a civil or criminal case in any county or state court, so the mechanism exists and the form does not fit it. A custom affidavit and application under Sec. Sec. 25-2301 to 25-2310 is the resolution rather than mis-scoping DC 6:7.1. (impact: release_blocker; affects: packet_components)

- The scope of any cases related to such charges or conviction, which decides how far one motion reaches. (impact: counsel_classification_required; affects: eligibility_branch)

- Whether Sec. 29-3523(5) reaches a mayoral pardon of a city ordinance violation. Lincoln and Omaha both operate mayoral pardon processes, which the review does not identify, and their effect under this subsection is untested. (impact: counsel_classification_required; affects: governing_mechanism)

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Motion to Seal a Pardoned Conviction (Neb. Rev. Stat. Sec. 29-3523(5))

Prepared for Jordan Avery Reyes.

- Filing: File the motion in the existing case with the clerk of court.

- Where: Clerk of the court holding the case. Filed in the existing case. The court, not the participant, notifies the county or city attorney, so no certificate of service applies to this motion.

- Venue: The court in which the case was filed, in county court or district court.

- What the registry says about filing: File the motion in the existing case with the clerk of court.

- What it costs: Not established; the statewide schedule carries no line item for a motion within an existing criminal case.

- Fee waiver: Available in principle under Neb. Rev. Stat. Sec. 25-2301.01. The official DC 6:7.1 form does not fit a criminal case, which is recorded as a release blocker.

- Service: None by the participant.

- Notarization: none required on the face of the form.

The order of operations the record fixes: obtain the pardon document and the Nebraska State Patrol criminal history report; confirm that the instrument really is a pardon and that the conviction is still showing publicly; complete the date of the charge on the motion; sign and date the motion; file it in the existing case with the clerk of the court that holds the case. The court, not you, notifies the county or city attorney, and no certificate of service applies to this motion. Bring the pardon document to the hearing.

Packet set: ne-seal-pardoned-set